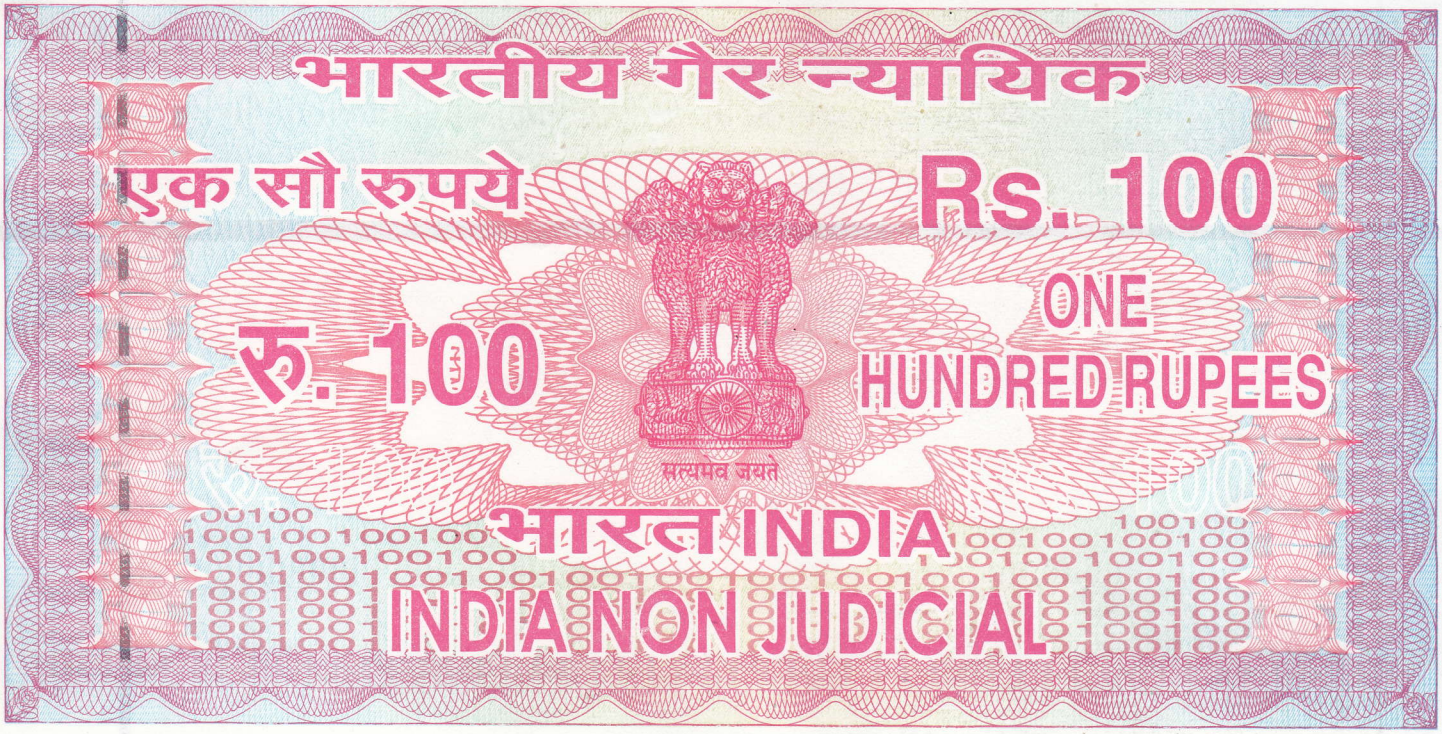


महाराष्ट्र MAHARASHTRA ◐ 2019 ◐ WC 321373

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अनु.क्र. ..... दि. ..... रु.मु.स्टॅम्प-१००/-

दस्ताचा प्रकार ..... प्रतिज्ञापत्र

दस्त नोंदणी करणार आहेत का? होय / नाही

मिळकतीचे वर्णन .....

मुद्रांक विक्री घेणाऱ्याचे नांव ..... NIMVA TECHNOLOGIES PVT. LTD

पत्ता ..... 187/G-Block, 1st Floor, Thermax Chowk, MIDC, Above Renault-Showroom, Chinchwad, Pune-411019.

दुय्यम निबंधकाचे नांव .....

इतर व्यक्तीचे नांव व पत्ता ..... आशीष मारणे

मुद्रांक विक्री घेणाऱ्याची सही

श्री विश्वरूप रामचंद्र जाधव
परवाना क्र. २२०१९५१
प्लॉट नं.१००, से. नं.१८, फुलेनगर
चिंचवड, पुणे - १९

वरिष्ठ कोषागार अधिकारी पुणे

28 NOV 2019

प्रथम मुद्रांक विक्रेते कोषागार पुणे करिता

AGREEMENT

THIS AGREEMENT is entered at Hyderabad on this the **04th day of January 2019**, by and between:

GMR AIR CARGO AND AEROSPACE ENGINEERING LIMITED a company incorporated under the Companies Act, 1956, having its registered office at Plot No. 1, GMR Aviation SEZ Limited, Rajiv Gandhi International Airport, Shamshabad, Hyderabad – 500 108 (hereinafter referred to as **"GACAEL"** which expression shall include its successors and permitted assigns) of the **First Part**

AND

NIHVA TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 1956, having its registered office at 8/1, Coromant HSG Society Sector 27, Pradhikaran Nigdi Pune- 411 044 Maharashtra (hereinafter referred to as the **"Service Provider"** which expression shall unless repugnant to the context thereof be deemed to mean and include its successors and permitted assigns) of the **Other Part**

"GACAEL" and **"Service Provider"** shall collectively be referred to as '**Parties**' and individually as a '**Party**'.

WHEREAS

A. GACAEL through its MRO division is inter alia is engaged in the business of providing airframe MRO services at the MRO Facility (hereinafter defined), line maintenance services and has the necessary skills and the facilities duly approved by the regulatory agencies as per the Applicable Laws.

B. GACAEL for engaging a party for certain Services (hereinafter defined) has floated a Request for Proposal on November 06, 2019

C. Based on the representations made by the Service Provider that it has the efficient manpower, technical and financial capabilities to undertake the Services (hereinafter defined) and on evaluation of the proposal submitted by the Service Provider, GACAEL has engaged the Service Provider vide its Letter of Award dated December 29, 2019 to provide the Services and now the Parties have decided to put forth there understanding into writing as under.

NOW THEREFORE IN CONSIDERATION OF THE PROVISIONS AND MUTUAL COVENANTS CONTAINED HEREIN IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES AS FOLLOWS:

DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement unless the context requires otherwise, the following words and expressions shall have the meanings set out below.

"**Agreement**" means this Agreement for Services as per the terms and conditions of this Agreement and shall include all the schedules and Annexures thereto, if any.

"**Applicable Law**" means all laws, brought into force and effect by GoI or GoT including rules, regulations and notifications made there under and judgments, decrees, injunctions, writs and orders of any court of record, as may be in force and effect during the subsistence of this Agreement.

"Business Day" shall mean a day on which commercial banking institutions in Hyderabad are open for business.

"Code of Conduct" means the rules of conduct as detailed in **Schedule I** of this Agreement to be adhered to by the Service Provider and its employees/ personnel deployed at GACAEL for providing the Services at all times during the subsistence of this Agreement.

"Commencement Date" means the 01st day of January 2020.

"**Effective Date**" means the date of execution of this Agreement.

"**GoI**" means the Government of India and any of its duly authorised agency, authority, department, ministry or person (whether autonomous or not).

"**GoT**" means the Government of India and Telangana and any of its duly authorized agency, local authority.

"**Good Industry Practice**" means the exercise of the highest degree of skill, diligence, prudence and foresight in compliance with the undertakings and obligations under this Agreement.

"**GACAEL Representative**" means GACAEL representative nominated by GACAEL from time to time during the subsistence of this Agreement.

"**Location/s**" shall mean the locations as detailed in **Schedule II** where the Service Provider shall provide the Services complying with the terms and conditions of this Agreement.

"Manpower" shall mean the minimum manpower to be deployed by the Service Provider for providing the Services as detailed in **Schedule III** of this Agreement.

"**Material Breach**" means a breach by a Party of any of its obligations hereunder which materially and adversely affects the performance of the transactions and fulfilment of obligations of the Parties contemplated by this Agreement.

"MRO Facility" means the facility of GACAEL.

"**Other Terms and Conditions'** shall mean the other terms and conditions as mentioned in **Schedule IV** and binding on the Parties.

"**Permits**" means all authorizations, consents, approvals, notifications, permissions and any license, permit, ruling, exemption or other authorization of whatsoever nature which are required to be obtained under Applicable Law from the Relevant Authorities, for or in respect of the Agreement including for the performance of any obligation or exercise of any right by a Party under this Agreement and in respect of Service Provider to also mean any approvals and consents required from GACAEL.

"**Relevant Authorities**" means the GoI or GoT or any other regulatory authority appointed by the GoI or the GoT having jurisdiction in relation to the subject matter of this Agreement under Applicable Law and shall where appropriate include GACAEL.

"**Safety Measures"** means the rules of safety and security as detailed in **Schedule V** of this Agreement to be adhered to by the Service Provider and its employees/ personnel deployed by the Service Provider at the MRO Facility for providing the Services at all times during the subsistence of this Agreement

"**Services**" means the annual maintenance services as detailed in **Schedule VI** to be provided by the Service Provider to GACAEL at the Location/s by deploying its personnel as detailed in this Agreement.

"Service Charges" means the amount agreed to be payable by GACAEL to the Service Provider for provision of the Services as detailed in Clause 5.1 of this Agreement.

"**Safety Measures**" shall mean measuring the quality of the Services provided by the Service Provider moresofully detailed in **Schedule V** of this Agreement.

"Term" shall have the meaning ascribed to it in Clause 2.2 of this Agreement.

1.2 Interpretation

In the interpretation of this Agreement, unless the context otherwise requires:

(a) the singular of any defined term includes the plural and vice versa, and any word or expression defined in the singular has the corresponding meaning used in the plural and vice versa;

(b) a reference to any gender includes the other gender;

(c) unless otherwise stated, a reference to an Article, Clause, sub-clause, paragraph, subparagraph, Annexures, exhibit, attachment, Schedule or recital is a reference to an article, clause, sub-clause, paragraph, subparagraph, annex, exhibit, attachment, schedule or recital of this Agreement;

(d) a reference to any agreement is a reference to that agreement and all annexes, attachments, exhibits, schedules, appendices and the like incorporated therein, as the same may be amended, modified, supplemented, varied, added to, substituted, replaced, renewed or extended, from time to time, in accordance with the terms thereof;

(e) a reference to statutes shall be construed as including all statutory provisions consolidating, amending, modifying, supplementing or replacing the statute referred to;

(f) the terms **'include'** and **'including'** shall be deemed to be followed by the words "without limitation", whether or not so followed;

(g) headings in this Agreement are for convenience only and shall not affect the interpretation hereof;

(h) a reference to a "**writing**" or "**written**" includes printing, typing, lithography and other means of reproducing words in a visible form;

(i) a reference to "**month**" shall mean a calendar month, and a reference to "**day**" shall mean a calendar day, unless otherwise specified.

1.3 Expiration of Time Period

In case any time period stipulated in this Agreement for the payment of any money expires on a day other than a Business Day, then such time period shall stand extended and shall be deemed to be extended to the next Business Day after the day on which any such time period expires.

2. ENGAGEMENT, TERM AND SCOPE OF SERVICES

2.1 Engagement

Subject to the terms and conditions including the **Other Terms and Conditions** as mentioned in **Schedule IV** of this Agreement and as per good industry practice, GACAEL engaged the Services of the Service Provider with effect from the Commencement Date.

2.2 Term

The term of this Agreement shall be deemed to have commenced from the Commencement Date and shall be valid . till 31st December 2022 unless terminated earlier in accordance with the provisions of this Agreement.

2.3 Scope of Services

The Service Provider shall provide the Services as detailed in **Schedule VI** in accordance with the Applicable Laws and as per GACAEL requirements. The Service Provider shall give written notice to GACAEL for any delay or prevention of the performance of the Services in whole/part due to any reason beyond its control.

The Service Provider shall (i) in the exercise of the Services, use and continue to use all reasonable endeavours to avoid or reduce the effect of the delay for completion of the Services or any part thereof; and (ii) as soon as practicable, provide to GACAEL in writing full and detailed particulars of the measures it recommends be adopted to avoid or reduce the effects of such event.

3. LOCATIONS

3.1 The Location/s where the Services shall be performed are detailed in **Schedule II** annexed to this Agreement.

3.2 The Service Provider hereby acknowledges that having regard to the nature of Services to be provided by it at the Location/s, it shall ensure to make available the minimum personnel as detailed in this Agreement at the Location at all times during the subsistence of this Agreement.

4. MOBILISATION OF MANPOWER AND EQUIPMENT

4.1 The Service Provider shall maintain the manpower and equipment mobilised for the provision of Services at the Location and shall upgrade the same from time to time to ensure uninterrupted provision of Services.

4.2 The Service Provider shall ensure that at all times during the subsistence of this Agreement it shall deploy the minimum number of personnel as detailed in this Agreement for performance of the Services. The Service Provider shall ensure that the personnel deployed at GACAEL shall follow the rules and regulations of GACAEL and adhere to the Code of Conduct as mentioned in **Schedule I** of this Agreement.

4.3 The Service Provider shall comply with all security and access requirements of GACAEL. Further, the Service Provider shall ensure the identity and bonafide of its personnel/ employees, servants, agents or of any other person or persons representing the Service Provider for performing the Services.

4.4 The Service Provider shall ensure that the equipment utilised for the provision of the Services are sound and merchantable quality and shall be able to provide the Services as per the terms and conditions of this Agreement.

5. SERVICE CHARGES AND MODE OF PAYMENTS

5.1 Service Charges



GACAEL with effect from the Commencement Date shall pay the Service Provider the following amounts (pro-rated as may be required) in accordance with the terms and conditions of this Agreement towards Service Charges along with GST if applicable.

Particulars	Rate/door/4visit/year (1 Visit = 5 days) (INR)	Qty of Door	Total Amount
Commencement Date to 31st December 2020	8,66,770	1	8,66,770
01st January 2021 to 31st December 2021	9,53,447	1	9,53,447
01st January 2022 to 31st December 2022	10,48,792	1	10,48,792

The Service Provider hereby agrees that any amount derived from such calculation and payable by GACAEL to the Service Provider pursuant to the payment calculation shall be deemed final.

The aforesaid amount shall be paid by GACAEL subject to the following conditions:

1. Service provider will visit GACAEL premises for maintenance at least Four (4) times in a year and one (1) time on call if required by GACAEL.

2. Any defect or issue arising in the maintenance work done, within One (1) month of completing scheduled service shall be attended and rectified by service provider without any cost.

3. After every visit service provider shall raise invoice and on call services shall service charges shall be included in the rate specified above and no separate invoice shall be raised for on call service if called for.

4. GACAEL operates in SEZ and is exempted from the payment of GST so service provider shall raise invoice without GST.

5. GACAEL shall make payment for of invoice raised within 30 days of receipt of invoice after deducting applicable taxes.

6. The aforesaid Service Charges are for only the Services agreed under this Agreement and in the event of damages due to misuse, misapplication by GACAEL or any defects arriving due to negligence by GACAEL or due to any accident, the additional charges shall be paid as may be mutually agreed between the Parties.

7. Any spare part/ component (if) required, will be procured by GACAEL at its own cost.

8. GACAEL shall provide the required forklift / scaffolding/ crane and necessary help to the personnel deputed by the Service Provider for the Services.

5.2 Claim

The Service Provider shall submit the invoice after completion of work along with all the supporting documents to the satisfaction of GACAEL.

GACAEL shall make the payment of the invoice within thirty (30) days from the submission of valid invoice to the satisfaction of GACAEL.

5.4 Disputed Claim

In the event GACAEL disputes any item billed by the Service Provider in the invoice, GACAEL shall notify the Service Provider within fifteen (15) days of the receipt of the said invoice. In the meantime, the payment of the undisputed item shall be paid and the amount disputed shall be withheld by GACAEL until settlement of the same.

6. This Agreement is being executed in two counterparts, each of which shall be deemed as original and both of them shall be taken together and deemed to be one instrument.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the day and year indicated above.

For and on behalf of GMR Air Cargo And Aerospace Engineering Limited	
	In the presence of :
Signature	Signature:
Name	Name:
Designation	Designation:
For and on behalf of Nihva Technologies Private Limited	
	In the presence of :
Signature	Signature:
Name Samruddhi Wakchaure	Name: Varsha
Designation Service Engineer.	Designation: Sales

Schedules Attached:

Schedule I- Code of Conduct
Schedule II- Locations
Schedule III- Details of manpower
Schedule IV- Other Terms and Conditions
Schedule V- Safety Measures
Schedule VI- Scope of Work/ Services

NIHVA TECHNOLOGIES PVT. LTD.

SCHEDULE I

CODE OF CONDUCT

1. Neither the Service Provider nor any of its employees shall trespass into the prohibited areas of GACAEL premises provided the areas which are prohibited are marked with clear signs of prohibitions.

2. Neither the Service Provider nor any of its employees shall be permitted to carry on any religious propaganda activities of whatsoever nature in the GACAEL premises.

3. Neither the Service Provider nor any of its employees shall be allowed to install any religious idols or structures whether temporary or permanent in nature, within GACAEL premises.

4. Neither the Service Provider nor its employees shall indulge in any kind of propaganda against GACAEL or GMR group companies in the GACAEL premises.

5. Neither the Service Provider nor any of its employees shall indulge in any demonstrations, strikes or dharnas, processions, political meetings etc., in the GACAEL premises.

6. Neither the Service Provider nor any its employees shall indulge in any touting activities in the GACAEL premises.

7. Any act or acts of vandalism whatsoever committed by the Service Provider or by any of its employees shall be treated as a serious offence and an appropriate action shall be taken by GACAEL.

8. The Service Provider shall alone be responsible to share this code of conduct with all its employees and shall ensure adherence in its entirety.

9. Neither the Service Provider nor any of its employees shall indulge in offering or accepting bribe to or from any of the GACAEL employees. Violation of this condition shall be treated as material breach of the terms of the respective agreements and GACAEL shall terminate the same without any notice whatsoever.

10. Neither the Service Provider nor any of its employees shall misuse or abuse the property of GACAEL including any of the facilities made available or installed in the GACAEL premises.

11. The Service Provider shall ensure that none of its employees indulge in intoxication activities within the GACAEL premises.

12. The Service Provider shall ensure that none of its employees indulge in eve teasing, ragging and/or any other sexual harassment activities within the GACAEL premises.

13. The Service Provider shall ensure that none of its employees indulge in any illegal activity within the GACAEL premises.

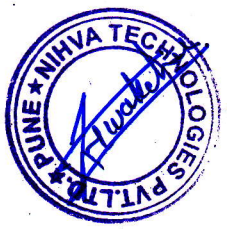
14. The Service Provider and its employees shall adhere to all the safety and security guidelines as may be prescribed from time to time by any government agency and/or GACAEL. The Service Provider shall alone be responsible for the damages/loss caused to GACAEL owing to the conduct/action of its employees and it shall indemnify GACAEL against all such damages/loss caused to it.

15. The Service Provider and its employees shall not indulge in any activity that may endanger the cleanliness of the GACAEL premises.

16. The Service Provider and its employees shall not be permitted to carry or possess any weapon whatsoever within the GACAEL premises.

17. The Service Provider and its employees shall not indulge in the GACAEL premises in making any prank calls causing scare or fear in the GACAEL users.

Violation of this Code of Conduct shall render the Service Provider liable for prosecution under the applicable law, besides cancellation of this Agreement.



SCHEDULE II

LOCATIONS

MRO Facility

SCHEDULE III

DETAILS OF THE MANPOWER & SERVICE PROVIDERS EQUIPMENT

- **6 people will visit at site for AMC.**

- **Equipment List as below:**

Sr. No.	Description	Qty
1	Screw Driver Set	1 Nos
2	Ratchet Box Set	1 Nos
3	Torque Machine	1 Nos
4	Screw Driver Machine	1 Nos
5	Multimeter and Tester	1 Nos
6	Consumable	1 Nos

SCHEDULE – IV

OTHER TERMS AND CONDITONS

1. SERVICE PROVIDER OBLIGATIONS

1.1 Compliance with laws

1.1.1 The Service Provider shall provide the Services in accordance with the terms and conditions of this Agreement and in accordance with the Applicable Laws.

1.1.2 The Service Provider shall at all times during the subsistence of this Agreement, abide by the provisions of all Applicable Laws including but not limited to labour laws and with all rules and regulations framed there under by the Relevant Authorities from time to time during the subsistence of this Agreement.

1.1.3 The Service Provider shall be solely liable and responsible for the payment of salaries/wages and all statutory contributions as applicable under the Applicable Laws towards its employees/ personnel deployed by it for providing Services under this Agreement. The Service Provider shall submit copies of all such licenses, permits etc., to GACAEL.

1.1.4 The Service Provider shall comply with all statutory guidelines that may be issued by the competent/government authorities and GACAEL as the case may be. The Service Provider shall be solely liable for any liabilities under environmental laws and shall abide by them for the provision of the Services.

1.1.5 The Service Provider shall obtain all requisite (operating license), permissions and approvals from competent authorities at its own cost and to apply, pay for and comply with the conditions of any license or permits, necessary for the provision of the Services and all other licenses, permits or approvals as may be required from any relevant authority under the Applicable Law. The Service Provider shall submit a copy of all the permissions and approvals with GACAEL.

1.2 Reporting Requirement

In addition to any other requirements of reporting as set out elsewhere in this Agreement, the Service Provider shall submit a monthly report on the overall performance of the Services to GACAEL or GACAEL's Representative. The report must also include the issues and recommendations to GACAEL or GACAEL's Representative for further action. The reports to be submitted to GACAEL or GACAEL's Representative shall include such particulars as may be requested by GACAEL w.r.t the Services to be provided under this Agreement

Further, the Service Provider shall ensure that the police verification is conducted on the personnel proposed to be deployed for rendering the Services. A certificate provided by the police department after conducting the police verification shall be submitted to GACAEL at frequent intervals or as and when demanded by GACAEL by the Service Provider without any demur or protest.

1.3 Safety measures

The Service Provider shall carry out all of its obligations hereunder in such a manner and as detailed in **Schedule V** so as not to endanger the lives and health of its own employees, the employees of others and the public or to cause damage to property at GACAEL. The Service Provider shall take all measures, in terms of the Applicable Laws, to maintain the health and

safety of persons and to prevent injury to persons or damage to any property where the Services are being performed, or in the vicinity thereof, as a result of the Service Provider performing the Services.

The Service Provider shall further ensure the following:

(a) Medical Examination

All the personnel engaged in the provision of the Services shall be medically examined before their deployment and should be subject to a regular medical examination by a qualified doctor who is aware of the risks to which such person is exposed. Any person showing symptoms of deteriorating health shall be immediately examined and given proper treatment at the cost and expense of the Service Provider.

(b) Protective Clothing

All the personnel engaged in the provision of the Services if required shall be provided with its official uniform and along with protective clothing viz., gloves, boots, hoods etc., at the cost and expense of the Service Provider.

(c) First Aid Measures

At all times sufficient stocks of medicines, injections, antidotes, first aid tools and equipment shall be maintained by the Service Provider as may be required to treat cases arising from skin contamination, eye contamination, swallowing etc.

1.4 Photo identification card

The Service Provider shall ensure that the personnel deployed for providing the Services always carry identification card provided by service provider in order to get entry in GACAEL premises and display (i) photo identity card issued by the Service Provider.

2. GACAEL OBLIGATIONS

2.1 GACAEL shall permit access to the Service Provider and its personnel for providing the Services at its premises under this Agreement.

2.2 GACAEL shall pay the Service Charges as detailed in this Agreement.

2.3 GACAEL shall review, comment and approve the works completed based on the reports.

3. CARE AND PROTECTION OF THE LOCATION AND OTHER PROPERTY

The Service Provider during the subsistence of this Agreement shall be responsible for the care and protection of GACAEL property and shall be responsible to the full value thereof for all loss or damage caused thereto, from whatsoever cause whilst in the possession, care or control of the Service Provider, its employees, servants or agents.

4. QUALITY ASSURANCE PLAN

The Service Provider shall exercise all reasonable skill, care and diligence in the performance of the Services. In this respect, the Service Provider shall adhere to and comply with the Quality Assurance Plan to ensure the effective operation and performance of the Services.

5. STORAGE AND TRANSPORTATION

GACAEL may at its sole discretion subject to availability provide a location for storage cum office space to the Service Provider during the subsistence of this Agreement if requested by the Service Provider. The Service Provider shall be responsible for the care and protection of the location and shall further be responsible to the full value thereof for all loss or damage thereto, from whatsoever caused by the Service Provider, its employees, servants or agents. It is clarified that the permission granted by GACAEL to the space pursuant to this clause to the Service Provider is only a permission to use the space and the same shall not be sublet under any circumstances whatsoever. GACAEL shall have the right to relocate the Service Provider to any other space by giving seven (07) days notice and the Service Provider without any protest or demur shall cease to operate from the space as and when demanded by GACAEL.

The Service Provider shall at its expense keep the storage cum office space clean, in good condition, and maintain a high standard of cleanliness acceptable to GACAEL.

6. GACAEL'S REPRESENTATIVE

GACAEL may notify a person as its representative (hereinafter referred to as **"GACAEL Representative"**) for the purpose of this Agreement and ensure that such person shall be authorised to act on GACAEL's behalf in all matters with respect to the provisions of the Services. The Service Provider shall accept instructions concerning the Services from GACAEL's Representative and shall communicate with GACAEL at all times through such person. Provided that the Service Provider shall use all reasonable endeavours to ensure that no such instruction is acted upon to the extent that such an instruction is appeared to conflict or be in any way inconsistent with any prior instruction of GACAEL's Representative prior to resolution of such apparent conflict and the Service Provider shall bring such conflict or inconsistency to the attention of GACAEL before acting thereon.

7. MISCONDUCTS, NEGLIGENCE ETC.

It is hereby agreed, confirmed and undertaken by the Service Provider that it shall including but not limited to its personnel shall comply with all the norms of discipline, safety and security as prevailing at GACAEL and shall not do anything contrary to the rules, regulations and discipline of GACAEL and shall not engage in any misconduct or negligence while performing the Services. The Service Provider shall exercise due care and caution while discharging the contractual obligations under this Agreement and while providing the Services shall ensure that there are no acts of misfeasance and malfeasance. The norms established by Indian Courts in respect of misconduct, negligence, misfeasance and malfeasance shall govern this provision.

8. INSURANCES

The Service Provider shall procure and maintain during the subsistence of this Agreement at its cost and expenses the insurance as per the requirements of GACAEL and in accordance with the good industry practices to protect GACAEL from any claims which may arise out of or result from its performance of the Services or otherwise under this Agreement, whether such claim may arise due to action or omission by the Service Provider or by anyone for whose acts the Service Provider may be liable.

Further, the Service Provider shall obtain and maintain adequate professional liability insurance (if so advised by GACAEL) as well as insurance against third party liability (such as sub-service providers, consultants, advisors, specialists) and it further acknowledges that GACAEL shall have no responsibility in respect of any life, health, accident, of its personnel or workers rendering the Services.

9. BREACHES AND CONSEQUENCES

It is clearly understood by the Service Provider that it shall alone be responsible for any breach committed by its personnel in the observance of terms and conditions of this Agreement.

10. INDEMNIFICATION

In the event of any claim or demand on GACAEL by any authority or any third parties on account of failure, default, negligence or dishonesty of the Service Provider or its personnel for the provision of Services as per the terms and conditions of this Agreement, the Service Provider shall indemnify GACAEL along with such costs or expenses GACAEL may have incurred or suffered due to the reasons attributable to the Service Provider and/or its personnel.

11. EXCLUSION OF CONSEQUENTIAL AND INDIRECT DAMAGES

Notwithstanding any other provision of this Agreement to the contrary, neither party will be liable to the other party in respect of any consequential or punitive or economic loss or damage (whether or not foreseeable at the date of this Agreement and whether or not arising out of the negligence of either party) that may arise out of the performance of or breach of this Agreement including but not limited to loss of profits, loss of trade and business interruption.



12. REPRESENTATIONS AND WARRANTIES

12.1 Each Party represents and warrants to the other that:

(a) It is duly organised and validly existing under the laws of India and have all requisite power and authority to carry on its business as it is now being conducted.

(b) This Agreement constitutes its valid, legally binding and enforceable obligation.

(c) It shall take such further acts, execute and deliver such further instruments and documents, and generally do all such other things as may be reasonably necessary to accomplish the transactions contemplated in this Agreement.

(d) It has taken all necessary action, corporate or otherwise, as applicable to them to authorise or permit the execution, delivery and performance of this Agreement and the transactions contemplated in this Agreement.

(e) The execution, delivery or performance of this Agreement by it will not: (i) constitute a breach or violation of its memorandum or articles of association; (ii) conflict with or constitute a default under or breach of performance of any of its obligation; or (iii) result in a violation of any law, regulation, administrative order or judicial order applicable to it or its business or assets.

(f) There is no action, suit, proceedings or investigations pending against it before or by any court, tribunal or Relevant Authority or instrumentality, domestic or foreign, which may materially and adversely impact any its ability to perform its obligations hereunder.

12.2 Service Provider further represents and warrants that:

(a) It possesses all Government Approvals for implementing the Services in terms of this Agreement as may be required under the Applicable Laws.

(b) It has the requisite skills, experience, expertise and capacity to perform the Services in terms of this Agreement.

(c) It is fully aware of all of the Applicable Laws which have to be complied by it while performing the Services and shall at all times perform the same in compliance with the Applicable Laws.

13. TERMINATION

13.1 Termination by GACAEL

At any time during the subsistence of this Agreement, GACAEL may terminate this Agreement upon the occurrence of one or more of the following events, by a written notice:

(a) of fifteen (15) days, in case of a material breach or failure to comply in any material respect to any provision of this Agreement by the Service Provider.

(b) of seven (07) days, in case of appointment of any receiver and manager or administrator or order passed for the winding up or liquidation for their equivalent in any jurisdiction which is applicable to the Service provider or any material part of their undertaking, except for the purpose of merger or amalgamation for corporate restructuring purposes as

per terms and conditions approved by GACAEL.

(c) of seven (07) days, if the Relevant Authority refuses to grant any of the requisite permission or withdraws any permission granted (other than for reasons attributable to the Service Provider) or imposes additional conditions with respect to any permission granted which are not acceptable to the Service Provider, in relation to the performance, execution and implementation of the Services and such refusal, withdrawal or imposition of additional conditions is/are non-appealable or the Parties mutually accept and do not appeal against such refusal, withdrawal or imposition of additional conditions.

(d) of seven (07) days, in case the Service Provider assigns or transfers this Agreement or any right or interest herein, or fails to perform or expresses its inability to perform the Services in accordance with the terms of this Agreement.

Without prejudice to any other rights or remedies available to GACAEL, GACAEL shall be entitled to terminate this Agreement without notice, if the Service Provider fails to procure or maintain/retain all applicable Permits in accordance with Applicable Laws and/or if any of the applicable Permits are cancelled /withdrawn by concerned authorities for any reason whatsoever.

13.2 Termination by both Parties without cause

Both the Parties may terminate this Agreement at any time by providing a written notice of thirty (30) days to the other Party.

13.3 Termination Exclusive of other Remedies

The termination or purported termination of this Agreement shall be without prejudice to any claims or rights of any Party previously accrued to it against the other Party before the effective date of termination.

13.4 Consequences of Termination

(a) On termination of this Agreement by GACAEL, GACAEL shall have the right to engage the services of a third party for the provision of the Services

(b) Upon termination of this Agreement, the Service Provider including but not limited to its personnel shall remove all its belongings from the Location within a period of seven (07) days. Failure to comply with this requirement shall entitle GACAEL to seize all the items within the Locations.

(c) If the Services are terminated or upon expiry of this Agreement, the Service Provider shall be entitled to be paid for the Services rendered until the date of termination within fifteen (15) days of submission of its invoices in accordance with the provisions of this Agreement

(d) In the event of termination of this Agreement by GACAEL, the Service Provider shall, if required by GACAEL's Representative, continue to perform the Services or any of them as required for a period specified by the GACAEL's Representative but not exceeding thirty (30) days whilst the successor for providing the Services is engaged. During any such period the Service Provider shall continue to act in all respects in accordance with this Agreement as if the same had not been terminated and the Service Provider's obligations hereunder continued during such period. GACAEL shall afford the Service Provider reasonable assistance in redeploying staff or making use of temporary staff to carry out its obligations and shall pay the Service Provider during

such period the Service Charges, as would have fallen due during such period if this Agreement had not been terminated.

14. STIPULATED PENALTIES

In the event of any lapses by the Service Provider or in the event of its personnel committing a breach of the terms of this Agreement which affects the provision of the Services, GACAEL shall at its discretion have the right to levy a penalty calculated at the rate of Rs 10,000/- (Rupees Ten Thousand only) for each day of such continuing breach of the terms of this Agreement, provided that the amount of penalties shall not exceed 10% of the Service Charges.

Notwithstanding any other right reserved by GACAEL elsewhere in this Agreement, if the Service Provider fails to adhere to the terms and conditions of the Agreement with respect to the quality of Services or the service level standards , then GACAEL at its own discretion shall have the right to engage any third party for rectifying such deficiencies and in such an event GACAEL shall have the right to adjust the amount incurred by GACAEL for such rectification and 10% towards administrative costs, from the amount/s payable to the Service Provider and Service Provider shall not have any objection whatsoever in this regard.

15. FORCE MAJEURE

If at any time during the subsistence of this Agreement, the Service Provider is, for reasons beyond its control, unable to carry out the Services i.e., due to fire, tempest, earthquake, accident, Act of God, war, flood, the same shall not be treated as breach of Agreement, either of the parties have the option to terminate the Agreement forthwith if such force majeure events continues for more than thirty (30) days.

16. NOTICES

All notices, requests or consents provided for or permitted to be given under this Agreement must be in writing and sent/delivered at the address mentioned herein first of this Agreement and shall be deemed effectively given when personally delivered or mailed by pre-paid certified mail, return receipt requested and shall be deemed received two days after mailing or on the date of delivery, if personally delivered or in the case of fax, on the date of sending, provided a confirmation of receipt is obtained within normal business hours, otherwise on the following day. All notices, requests or consents provided for or permitted to be given under this Agreement can also be sent by email where sent by email, request/ consent/ notices shall be deemed to be received on the date that the email is received. However, if the time of deemed receipt of any notice is not before 5.30 p.m. local time on a Business Day at the address of the recipient it is deemed to have been received at the commencement of business on the next Business Day.

Any change in the address of any Party shall be informed to other Party in writing and obtain acknowledgement of receipt of such information.

A notice shall be deemed to have been served if delivered personally on the date of delivery, if posted on the expiration of three (03) days after posting, and if sent by fax on the date of transmission.

17. ENFORCEABILITY

In the event any provision of this Agreement is held by a court/ forum of competent jurisdiction to be unenforceable because it is invalid or in conflict with any law of any

relevant jurisdiction, the validity of the remaining provisions shall not be affected and the rights and obligations of the Parties shall be construed and enforced as if this Agreement did not contain the particular provisions held to be unenforceable and the unenforceable provisions shall be replaced by mutually acceptable provisions which, being valid, legal and enforceable, come closest to the intention of the Parties underlying the invalid or unenforceable provision.

18. GENERAL PROVISIONS

18.1 Amendments

No amendment or modification of this Agreement and no waiver of any of the terms or conditions hereof shall be valid or binding unless made in writing and duly executed by or on behalf of all the Parties.

18.2 Assignment

The Service Provider shall not assign, delegate or subcontract this Agreement or rights granted hereunder to any third party without a prior written approval of GACAEL. However, GACAEL shall have the right in its absolute discretion to assign all or part of its rights under this Agreement to any third party on prior intimation.

18.3 Reservation of Rights

No forbearance, indulgence or relaxations or inaction by any Party at any time to require performance of any of the provisions of this Agreement shall in any way affect, diminish or prejudice the right of such Party to require performance of those provisions of this Agreement in full and shall not be construed as a waiver or acquiescence of any continuing or succeeding breach of such provisions or as a waiver of any right under or arising out of this Agreement or acquiescence to or recognition of rights and/or position other than that expressly stipulated in this Agreement.

18.4 Law and Jurisdiction

This Agreement shall be governed and interpreted by and construed in accordance with the laws of India, the Courts at Hyderabad, India shall have the exclusive jurisdiction over all matters arising out of or relating to this Agreement.

18.5 Dispute Resolution and Arbitration

18.5.1 Mutual Resolution

The Parties to this Agreement hereby agree that they intend to discharge their obligations in utmost good faith. The Parties therefore agree that they will, at all times, act in good faith, and make all attempts to resolve all differences howsoever arising out of or in connection with this Agreement by mutual discussion, only failing which, by resorting to arbitration.

18.5.2 Arbitration

Any dispute arising out of or in connection with this Agreement including any question regarding its existence, validity, interpretation, application, performance or termination, and not resolved by mutual resolution within thirty (30) days, shall be referred to arbitration. The arbitration proceedings shall be conducted in accordance with the Arbitration and Conciliation Act 1996 and any amendments made thereto from time to time. Each of the parties shall appoint one arbitrator and the two arbitrators so appointed shall appoint the

presiding arbitrator. The language of the arbitration shall be English and the venue shall be Hyderabad, India. The Parties hereto agree that the arbitral award shall be final and binding.

Pending final resolution of any dispute, the Parties shall continue to perform their respective obligations hereunder.

18.6 Entire Agreement

This Agreement and all other documents delivered pursuant to this Agreement constitute the entire agreement between the Parties. It is also hereby clarified, that to the extent of an inconsistency (if any) between any of the aforementioned documents and the terms of this Agreement, the terms of this Agreement shall prevail.

18.7 Independent Parties

The Service Provider and GACAEL are independent parties and nothing herein shall be deemed to constitute either the Service Provider or GACAEL as the employee, representative, agent, partner, legal representative or joint venture of the other.

18.8 English Language

This Agreement and all notices or written communication and provision of any and all data, reports, information hereunder shall be in English.

18.9 Confidentiality

The Parties hereto agree that they will hold in confidence the terms and conditions of this Agreement all information, documentation etc. which comes to their knowledge in course of the Agreement ("**Confidential Information**") and will not disclose to any third party including but not limited to media (print or electronic) or use Confidential Information or any part thereof without the other Party's prior written consent provided that Confidential Information may be disclosed to (i) any governmental or regulatory authority requiring such disclosure under law and (ii) legal advisors and other consultants. All such information divulged shall not be used, misused, copied, represented with any changes or alterations, and shall not be voiced, advertised, without the written consent of the other party.

18.10 Survival

Notwithstanding the termination of this Agreement, clauses 10, 16, 18.4, 18.5, 18.8 and 18.9 of **Schedule IV** shall survive for three (03) years from the expiry or early termination of this Agreement.

SCHEDULE V

SAFETY MEASURES

During the subsistence of this Agreement, the Service provider shall ensure to comply and adhere to the safety precautions and measures of GACAEL including but not limited to the following:

1) The Service Provider /subcontractors /agents and its employees/personnel shall adhere to GACAEL regulatory safety requirements, policy/policies incorporated by any government agency and/ GACAEL.

2) The Service Provider /subcontractors /agents and its employees/personnel shall give safety and security the highest priority by systematically assessing and managing the safety and security risks through audited management systems and best practices of the Services performed under the Agreement and cooperate with GACAEL for any periodic review and monitoring by external or internal auditors of the same.

3) At all times during the subsistence of this Agreement the Service Provider /subcontractors /agents and its employees/personnel shall report of each and every dangerous occurrence to GACAEL or GACAEL representative and enable GACAEL/GACAEL representative for the related investigation and preventive/corrective actions to be implemented and monitored.

4) The Service Provider /subcontractors /agents and its employees/personnel and its personnel shall work in accordance to the guidelines of the performance evaluations which shall be reviewed and monitored by GACAEL/ GACAEL representative from time to time.

5) The Service Provider /subcontractors /agents and its employees/Personnel hereby agrees and acknowledges that either the Service Provider/its personnel not do any act/s of any willful negligence or violation of laid down safety and security guidelines of GACAEL.

6) The Service Provider /subcontractors /agents and its employees/personnel shall ensure to the compliance to all regulatory safety requirement of GACAEL at its premises.

7) The Service Provider /subcontractors /agents and its employees/personnel shall allocate necessary resources towards implementing safety management systems of GACAEL.

Violation of any of the Safety Precautions/policies shall render the Service Provider /contractor /subcontractor liable for prosecution under the applicable law, besides cancellation of this Agreement.



SCHEDULE VI

1. SCOPE OF WORK/SERVICES

MEGA DOOR

1. Check condition of side guides and slide blocks,
2. Check condition of door fabric, intermediate beams and bottom seal.
3. Check condition of lifting belts.
4. Check operation of limit switches, clean and lubricate as required.
5. Check condition of motors including dust build up in the fans and oil levels.
6. Test the operation of the door using standard push buttons and any additional remote devices.
7. Check and test the safety arrestors.
8. Check and test any safety devices that are fitted.
9. Check the mullion joint.
10. Check the chain hoist.
11. Check list will be submitted after every service.

2. Visits

a) The Service Provider shall carry out Four (4) services in a year to carry out scope of works as above at for ASSA ABLOY-MEGADOOR of Size: (W)40 x (H)9/14 Mtr door.
b) The Service Provider will attend one breakdown calls with free of cost.
c) The price shall not include the supply of spare parts and consumables.
d) Upon discovery of any parts to be replaced, GACAEL will be advised in writing, the cost for such work to be carried out

